

As to the Request for Production of Documents 51 requests were made, and responses were promised to all but six requests, yet defendant produced no documents. Defendant is ordered to produce documents as promised in the initial responses, within 20 days after notice of entry of this order.

Defendant filed a late response indicating that “it owes document discovery to Plaintiff,” but that it is going out of business and hopes to settle the case with a two-week continuance. Plaintiff replies that, while the case may yet be settled, it opposes a continuance. In the absence of agreement by the parties, the Court will deny the continuance

As to the request for sanctions, Rule of Court 3.1348(a) specifically addresses this situation, providing: “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” Failure to oppose or filing of a supplemental response “shall not be deemed an admission that the motion was proper or that sanctions should be awarded.” (CRC 3.1348(b).)

Code of Civil Procedure sections 2031.300(c) (production of documents) and 2030.290(c) (interrogatories) require sanctions, under specified circumstances, against a party “who unsuccessfully makes or opposes a motion to compel[.]” Under Code of Civil Procedure section 2023.030(a), however, the court has separate authority to impose a monetary sanction against a party engaging “in the misuse of the discovery process,” which is defined to include “making, without substantial justification, an unmeritorious objection to discovery[.]” (CCP § 2023.010(e).) That section does not require opposition to a motion to compel.

The evident purpose of the provisions of the statute and Rules of Court is to assure that a party cannot unjustifiably refuse to respond to discovery, put the propounding party to the time and expense of filing a motion to compel, and then avoid any accountability by not opposing the motion or supplementing the discovery responses.

10. 9:00 AM CASE NUMBER: C25-01089
CASE NAME: CONSUELO CAMPOS VS. CONTRA COSTA COUMMUNITY COLLEGE DISTRICT
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CONTRA COSTA COUMMUNITY COLLEGE DISTRICT
TENTATIVE RULING:

The demurrer, filed by defendant Contra Costa Community College District, is **overruled**. District shall file and serve its answer on or before December 22, 2025.

I. Factual Background

The complaint here involves plaintiff’s attendance at graduation ceremonies at the Diablo Valley College campus on May 17, 2024. (Complaint, ¶8.) Plaintiff alleges that she was walking along the fence on way to find seating in the bleachers when she tripped over an exposed cable that lacked any cable cover, with no other warning or demarcation. (*Ibid.*) Plaintiff suffered injuries to her chin,

right arm, right elbow, chest, left side of her body, and broke her right wrist. (*Ibid.*)

Earlier that morning, defendant DPH Sound and Lighting Corporation arrived at the campus and a network cable was connected to “the FBO portable.” (Complaint, ¶18.) A DVC employee connected the cable and had advised DPH that they would need to place a cable cover. (*Id.* at ¶19.) DPH did place a cover on the cable, but on the opposite side of the subject fence, not where plaintiff and other attendees would be walking to reach their seats in the bleachers. (*Ibid.*) The college employee failed to check that the cable cover was properly placed for the purposes of protecting attendees like plaintiff. (*Ibid.*)

Plaintiff filed this complaint on April 17, 2025, alleging three causes of action with the following titles: (1) Public Entity Liability, (2) Public Employee Liability, (3) Negligence. Plaintiff seeks to recover damages for her injuries.

After making some effort to meet and confer with plaintiff, and receiving no substantive response, defendant filed this demurrer pursuant to Code of Civil Procedure section 430.10, subdivision (e), arguing the complaint fails to state a cause of action. Plaintiff opposes the demurrer.

II. Evidentiary Matters

Defendant’s request for judicial notice of the complaint is **granted**.

III. Demurrer Standard

In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

Allegations must be liberally construed by drawing reasonable inferences from the facts pleaded, and with a view to substantial justice between the parties. (Code Civ. Proc., § 452; *Flynn v. Higham* (1983) 149 Cal. App. 3d 677, 679.) We give the complaint “a reasonable interpretation, reading it as a whole and its parts in their context. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.) We are not limited to plaintiffs’ theory of recovery in testing the sufficiency of their complaint against a demurrer, but instead must determine if the factual allegations of the complaint are adequate to state a cause of action under any legal theory. (*Id.* at 38-39, citations omitted.)

IV. Discussion

District demurs because it contends the complaint fails to identify the statutory basis for liability and a public entity is not liable for an injury except as provided by statute. (Gov. Code, § 815, subd. (a); see also *Zelig v. County of Los Angeles* (2002) 27 Cal. 4th 1112, 1127.)

Plaintiff responds to this with citations to the aspects of her complaint that satisfy the requirements of Government Code section 835. Government Code section 835 sets out the exclusive conditions under which a public entity can be liable for a dangerous condition of public property. Section 835 states, “Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and either: [¶] (a) A negligent or wrongful act or omission of an employee of the

public entity within the scope of his employment created the dangerous condition; or [¶] (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.”

The complaint alleges a dangerous condition. (Complaint, ¶12.) It alleges that the injury was proximately caused by the dangerous condition. (*Id.* at ¶15.) Plaintiff has also alleged that the dangerous condition created a reasonably foreseeable risk of the kind of injury suffered. (*Id.* at ¶¶12-13.) Plaintiff pleads that a negligent or wrongful act or omission of DVC’s employee, within the scope of his employment, created the dangerous condition, and that DVC had actual or constructive notice of the dangerous condition. (*Id.* at ¶¶14, 22.)

Under the standard described in *Quelimane Co., supra*, plaintiff’s title of a cause of action is not determinative of its nature. Accordingly, while the District’s contention on reply that “a public entity cannot be held liable for common law negligence” may be true, the facts alleged are sufficient to allege liability for a dangerous condition of public property pursuant to Government Code section 835.

Plaintiff’s opposition also points out that the statutes on which the complaint is based are included in the caption. The list is not specific as to which cause of action falls under which statute, but sustaining a demurrer based on these statutes not being copied into the body of the complaint would elevate form over substance. Both sides discuss Government Code section 835, which is among the statutes cited in the caption, and the facts included in the complaint satisfy the elements of the statute. The general rule is that “every *fact* material to the existence of its statutory liability must be pleaded with particularity.” (*Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795, emphasis added.) The Court is unaware of authority that also requires each cause of action to include a specific statutory citation. Any further clarification can be achieved through discovery requests.

While plaintiff does not respond to the demurrer’s arguments concerning the third cause of action, the cause of action is largely duplicative of the others. While the title may misidentify the nature of what is being pleaded, the styling of the complaint does not determine whether a cause of action has been stated. Both parties appear to understand that the cause of action stated is one for dangerous condition of public property.

The demurrer is overruled.

**11. 9:00 AM CASE NUMBER: C25-01475
CASE NAME: AUDREY WELSCH VS. HAYDEN FLOREZ
HEARING ON ORDER TO SHOW CAUSE IN RE: WHY A PRELIMINARY INJUNCTION SHOULD NOT BE
ISSUED CONTAINING THE SAME TERMS AS TRO PENDING FINAL JUDGMENT
FILED BY:**

TENTATIVE RULING:

Plaintiff Audrey Welsch’s request for a preliminary injunction is denied.

I. Background

Plaintiff Audrey Welsch filed this action on May 28, 2025, asserting causes of action for Claim and Delivery (Replevin), Conversion, Trespass to Chattels, Intentional Infliction of Emotional Distress, Negligent Infliction of Emotional Distress, and Declaratory Relief against Defendant Hayden Florez.